

Sukhen Dutta vs The State Of West Bengal on 27 March, 2014

Author: Jayanta Kumar Biswas

Bench: Indrajit Chatterjee, Jayanta Kumar Biswas

In The High Court At Calcutta Criminal Miscellaneous Jurisdiction Appellate Side Present : The Hon'ble Mr Justice Jayanta Kumar Biswas and The Hon'ble Mr Justice Indrajit Chatterjee C.R.M. No.4351 of 2014 Sukhen Dutta

-VS-

The State of West Bengal

Mr. Sandipan Ganguly
Mr. Bidyut Baran Biswas

...for the petitioner

Ms. Puspita Saha

...for the State

Heard on: March 27, 2014

Order on: March 27, 2014

Jayanta Kumar Biswas, J : The petitioner in the CRM saying that he is apprehending arrest in connection with Sainthia P.S. Case No.27 of 2014 dated February 8, 2014 under ss.498A/506/494 IPC and ss.3/4 Dowry Prohibition Act is seeking bail under s.438 CrPC.

Mr Ganguly appearing for the petitioner has submitted as follows. The petitioner is the husband of the de facto complainant. The document at p.12 of the CRM will show that on December 23, 2013 the petitioner instituted a suit under s.9 of the Hindu Marriage Act. The de facto complainant instituted the criminal case on February 8, 2014. It is probable that she instituted the case only when she received notice of the suit. An offence under s.494 is bailable. In any case, an offence under that section cannot be the subject matter of investigation in the case instituted by the de facto complainant.

Advocate for the State has produced the case diary and referred to the materials therein, especially to the statement of the petitioner's father at p.26.

The petitioner's father in his statement has said as follows. Soon after marriage the petitioner started torturing the de facto complainant. The de facto complainant's father promising to give dowry (money) ought to have honoured his promise. The petitioner married for the second time.

The allegation of tortures made by the de facto complainant is supported by the statement of the petitioner's father. The case of dowry demand is also supported by the same statement. The

petitioner married for the second time during the subsistence of his first marriage. Whether the issue can be investigated in the case is not to be examined at this stage.

On the facts of the case, we are of the opinion that the petitioner is not entitled to anticipatory bail.

For these reasons, we dismiss the CRM. Certified xerox.

(Jayanta Kumar Biswas, J) (Indrajit Chatterjee, J) sb